

CHAIRMAN



UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C. 20436

November 9, 2006

The Honorable Susan C. Schwab
United States Trade Representative
Washington, DC 20508

Dear Ambassador Schwab:

On November 9, 2006, the United States International Trade Commission issued a limited exclusion order and a cease and desist order, pursuant to section 337 of the Tariff Act of 1930 (19 U.S.C. § 1337), in USITC Investigation No. 337-TA-563, *Certain Portable Power Stations and Packaging Therefor*.

The limited exclusion order prohibits importation into the United States of portable power stations and packaging therefor covered by U.S. Design Patent No. D469,730; U.S. Trademark Registration No. 2,594,538; and U.S. Copyright Registration No. VA-1-261-495, that are manufactured abroad or imported by, or on behalf of, Sinochem Ningbo, Ltd., of Ningbo, China, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns.

The Commission concluded that the statutory public interest factors enumerated in subsection (g)(1) of section 337 of the Tariff Act of 1930, as amended, (19 U.S.C. § 1337(g)(1)) do not preclude the issuance of this remedy. The Commission also determined that the excluded portable power stations may be imported and sold in the United States during the Presidential review period under a bond in the amount of 100 percent of the entered value of such portable power stations.

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In accordance with subsection (j) of section 337 of the Tariff Act of 1930 (19 U.S.C. § 1337(j)) and the July 21, 2005, Memorandum for the United States Trade Representative (70 *Fed. Reg.* 43251), I am transmitting to you and the President copies of the Commission's order and the record upon which it based its determinations.

Sincerely,

Daniel R. Pearson/KD.
Daniel R. Pearson

Enclosures

cc: Probir Mehta, Esq.
Office of the General Counsel
Office of the United States Trade Representative

*w/o enclosures
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